

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S MEMORANDUM OF JUDICIAL INCOHERENCE ON
DAMAGES AWARDED**

Defendant, Marc Moszkowski, appearing pro se, respectfully submits this Memorandum to place on the record the fundamental factual, legal, and jurisdictional incoherence underlying the Court's damages award in the above-captioned case. The Court's judgment awarding \$1,035,000—three times the amount of a single alleged transaction—rests on a narrative so contradictory, unsupported, and jurisdictionally untenable that it defies the standards of due process and judicial reasoning.

1. The Alleged Claim

Plaintiffs center their final claim around the vague accusation that:

*"Ever since Defendant decided to go rogue and take a salary for his work for Toke Oil and Gas S.A., while being paid a salary from DeepGulf..."*¹

This rhetorical and insulting framing is unsupported by law, contract, or evidence, and was never examined in an evidentiary hearing. It does not allege breach of a written agreement, fraud, or misappropriation under any recognized standard. It is pure insinuation.

2. Source of the \$345,000

The \$345,000 at issue did not originate from DeepGulf, Inc. It was voluntarily transferred to Defendant by the then East Timorese shareholder of Toke Oil and Gas S.A., from the 49.7% of earnings allocated to the East Timorese partners under the agreed revenue-sharing formula, to assist Defendant in paying taxes on his family home—a debt DeepGulf, Inc. had created by failing to pay Defendant's salary for over three years.

DeepGulf, Inc. had no claim to those funds at the time. The payment predated its acquisition of Toke Oil and Gas S.A. and came from the earnings allocated to the East Timorese partners.

¹ Plaintiffs' Response to Motion to Strike the Complaint as a Sham

3. The Valuation Contradiction

If the \$345,000 was owed to Toke Oil and Gas S.A.'s East Timorese shareholder at the time of its transfer to Defendant, then the amount was part of that shareholder's exclusive assets prior to DeepGulf, Inc.'s acquisition. In that case, the proper course of action would have been for the shareholder—Toke's 66.67% owner at the time—to demand repayment. He never did. He did not allege theft, request reimbursement, or sue.

Moreover, if the \$345,000 was an asset of Toke pre-acquisition, then the acquisition price of \$100,000 paid by DeepGulf, Inc. to the shareholder was facially fraudulent. The fair value of Toke Oil and Gas S.A. should have been at least \$445,000 (or \$1,135,000 if tripled), and failure to reflect that in the transaction constitutes a fraud upon the East Timorese seller. No acquirer may retroactively demand recovery of a pre-acquisition asset without simultaneously acknowledging that it unjustly enriched itself through that very omission.

Had the \$345,000 in question been returned to Toke prior to its acquisition, it would have been distributed to its rightful owner—the East Timorese shareholder—who held two-thirds of the company and never brought suit. For DeepGulf to claim this amount over a decade later—post-

acquisition, without adjusting the purchase price, and in the absence of any demand by the original owner—is not merely illogical. It is the appropriation of another party's property under judicial cover. No legal theory permits such expropriation. It is, in essence and effect, fraud.

4. DeepGulf, Inc.'s Lack of Standing and the Misuse of Toke Oil and Gas S.A.

If the money is now claimed by DeepGulf, Inc., it does so despite having suffered no loss—and despite already receiving more than 50% of all project revenue, far exceeding its 33.33% equity share. This over-recovery was made possible by the generosity of the Timorese partners, who voluntarily transferred part of their rightful 66.67% share to DeepGulf. There was never any agreement permitting DeepGulf to receive more than its one-third equity portion, let alone a majority of the proceeds.

If DeepGulf alone claims this amount, then the inclusion of Toke as Plaintiff served no legitimate legal purpose and appears to have been used solely to destroy diversity jurisdiction and effectuate a remand to state court. That procedural manipulation—executed after near-defeat in federal court—must be reviewed.

5. Toke Oil and Gas S.A.'s Nonexistence

Toke Oil and Gas S.A. was defunct at the time of the lawsuit and had not filed corporate maintenance documents under East Timorese law, nor paid tax, nor maintained the required East Timorese principals, nor paid up the minimum required capital, and had no lawful standing under East Timorese law. Plaintiffs argue vaguely and without evidence that Toke Oil and Gas S.A. continues to exist "*for purposes of winding up*," but cite no East Timorese law authorizing a defunct entity to initiate litigation in Florida. Instead, they invoke an uncited '*equivalent to Florida's Annual Report paperwork*'—a vague analogy wholly inadequate for proving standing. If Toke Oil and Gas S.A. could not legally receive funds, and if its former shareholders were not joined in this action, then the funds—whether due or not—could not be awarded to DeepGulf, Inc.

6. Triple Damages Without Legal Basis

The Court awarded **\$1,035,000** on an alleged transaction of \$345,000. No statute has been cited authorizing treble damages. This Court's judgment effectively imposes a punitive award under color of equity, without meeting the pleading, notice, or evidentiary thresholds required by statute or common law for such penalties. No claim under Florida's civil

theft statute (§ 772.11), RICO, or any punitive damage framework was pled or proven. No evidence was admitted warranting punitive multipliers. The award lacks both statutory and factual foundation.

7. Jurisdictional and Logical Collapse

As a matter of record, the Court's judgment now obligates a French national, residing in France, to pay \$1,035,000 to an East Timorese individual who never brought suit, over a transfer of funds voluntarily granted more than thirteen years ago and never disputed by the original parties. This outcome, lacking jurisdictional, factual, or legal coherence, exemplifies the collapse of adversarial process and the Court's reliance on speculative or surrogate claims.

If, as the Court now suggests, the judgment is owed to DeepGulf, Inc., then the entire premise for remand from federal court collapses. The case was remanded solely on the assertion that Toke Oil & Gas S.A.—a purported foreign plaintiff—destroyed diversity jurisdiction. Yet Toke has not appeared, has not filed a claim, and no payment has been ordered to it. Instead, the Court awards over \$1 million to DeepGulf, a Florida corporation, on a transfer of funds that:

1. Originated from the Timorese owners' share,
2. Was never disputed by them,
3. Was outside any privity or contract between DeepGulf and the recipient, and
4. Took place thirteen years ago, fully disclosed contemporaneously.

The result is a jurisdictional sleight of hand: remanding to state court on the theory that a foreign entity is the real party in interest, then awarding judgment to a Florida-based corporation with no standing to recover the funds under any theory of law or equity.

The acquiring party—DeepGulf, Inc.—suffered no loss. The original shareholder made no claim. The named Plaintiff entity was long defunct and legally incapable of receiving funds. And the jurisdictional status of the case was manipulated to avoid federal scrutiny.

This is not a judgment grounded in law—it is an institutional collapse in the guise of justice.

Defendant respectfully preserves these objections for appellate review.

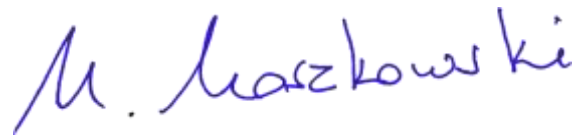
Respectfully submitted this 14th day of July, 2025.

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Le Verdos

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CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of July, 2025, a copy of this Memorandum has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

